

FORM 70 S
DIVORCE JUDGMENT

(Court file no.)

(Court)

(Name of judge)

(Day and date judgment given)

(Court seal)

(Title of proceeding, naming only the spouses unless an order is made against another person also)

DIVORCE JUDGMENT

(Judgment on motion for judgment)

THIS MOTION made by the petitioner for judgment for divorce was heard this day at (place). The respondent did not defend this action although properly served with the petition as appears from the affidavit of service filed.

ON READING the petition, the notice of motion for judgment, the affidavit dated (date) of the petitioner (where appropriate, add and the affidavit dated (date) of the respondent or as the case may be) filed in support of the motion and (refer to any other material filed, such as the Director of Child Protection's report dated (date), or the materials filed by the Office of the Children's Lawyer's dated (date)) (where oral evidence is heard, add and on hearing the evidence presented by the petitioner).

(Judgment after a trial: adapt the recitals from Form 59 B)

(Judgment on joint petition)

THIS MOTION made jointly by the spouses for judgment for divorce was heard this day at (place). The spouses jointly petitioned for divorce.

ON READING the petition, the notice of motion for judgment, the affidavit dated (date) of Spouse One, and the affidavit dated (date) of Spouse Two filed in support of the motion and (refer to any other material filed, such as the Director of Child Protection's report dated (date) or the materials filed by the Office of the Children's Lawyer's dated (date)), (where oral evidence was heard, add and on hearing the evidence presented by the spouses),

(Where the divorce is to take effect earlier than the thirty-first day after it is granted, add:) and since this court is of the opinion that by reason of special circumstances the divorce should take effect earlier than the thirty-first day after the day this judgment is granted, and since the spouses have agreed and undertaken that no appeal from the judgment will be taken,

1. THIS COURT ORDERS that (name of spouses), who were married at (place) on (date), are divorced and that the divorce takes effect on (date).

(Where the court also grants judgment for other relief, add:)

2. THIS COURT ORDERS, under the Divorce Act (or as may be), that

(In a judgment for the payment of money on which postjudgment interest is payable, add:)

THIS JUDGMENT BEARS INTEREST at the rate of _____ percent per year commencing on *(date)*.

(Signature of judge)

THE SPOUSES ARE NOT FREE TO REMARRY UNTIL THIS JUDGMENT TAKES EFFECT, AT WHICH TIME A CERTIFICATE OF DIVORCE MAY BE OBTAINED FROM THIS COURT. IF AN APPEAL IS TAKEN IT MAY DELAY THE DATE WHEN THIS JUDGMENT TAKES EFFECT.